

25TRCV03207 25TRCV03207

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-09-03

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CM%2C09%2F03%2F2026

Source SHA-256: d836ddcf01daabab28ff7801c3f82d6abebaf0f8fdb4857efc39237e75bf0eb7

Case Number: 25TRCV03207 Hearing Date: September 3, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Thursday – September 3, 2026

Calendar No.

PROCEEDINGS

Gerald

Sowell, et al. v. Torrance Lodging LLC, et al.

25TRCV03207

1. Torrance Lodging LLC's Demurrer to Second Amended Complaint

2.

Torrance Lodging

LLC's Motion to Strike Portions of Second Amended Complaint

TENTATIVE RULING

Torrance Lodging LLC's Demurrer to Second Amended Complaint is overruled.

Torrance Lodging LLC's Motion to Strike Portions of Second

Amended Complaint is granted without leave to amend.

Background

Plaintiffs' Complaint was filed on September 17, 2025, the First Amended Complaint on February 27, 2026, and the Second Amended Complaint on June 1, 2026. Plaintiffs allege the following facts. Plaintiffs suffered bed bug bites after staying at Defendant's hotel. Plaintiffs allege the following causes of action: 1) Negligence – Premises Liability/Failure to Warn – Negligence Per Se 2) Breach of Contract 3) Intentional Infliction of Emotional Distress 4) Fraudulent Concealment.

Meet and Confer

Defendant set forth meet and confer declarations in sufficient compliance with CCP § 430.41 and CCP § 435.5. (Decls., Karen E. Adelman).

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v.

Williams (1961) 193 Cal.App.2d 636, 643-644.) "Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609–610.) Under Code Civil Procedure § 430.10(f), a demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendant demurs to the second cause of action for failure to state sufficient facts to state a cause of action and uncertainty.

Second Cause of Action for Breach of Contract

Defendant's demurrer to the second cause of action is overruled. Plaintiffs state sufficient facts to state a cause of action and the cause of action is not uncertain.

"The elements of a cause of action for breach of contract are: (1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to plaintiff." Coles v.

Glaser (2016) 2 Cal.App.5th 384, 391(internal quotations omitted). "[T]he complaint must indicate on its face whether the contract is written, oral, or implied by conduct. [...] If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference." Otworth v. Southern Pac. Transportation Co. (1985) 166 Cal.App.3d 452, 458–59.

Here, Plaintiffs indicated the existence of a contract but failed to attach the contract nor set forth the terms verbatim. In addition, Plaintiffs fail to specify whether the contract is written, oral, or implied by conduct. Instead, Plaintiffs continue to attempt to allege the contract in the following manner: "Plaintiffs entered into a hotel rental agreement that was combined by oral, written, and implied counterparts[.]" (SAC, ¶ 67). In reviewing the alleged facts of the "written" and "oral" manner, it is clear that the contract cannot be based on a written

or oral agreement.

However, Plaintiffs

allege the following with respect to an implied contract: “2) Implied: the implied counterpart of the contract between the Plaintiffs and Defendants is that in consideration of the payment from Plaintiffs for their stay at the Subject Property, Defendants will provide a safe hotel room and comply with the covenant of good faith and fair dealing, which requires each party to do everything that the contract presupposes that they will do to accomplish its purpose. The purpose of the hotel rental agreement was for Plaintiffs to obtain a habitable Subject Room from Defendants in return for payment for the Subject Room. Therefore, the contracts presupposed that Defendants would put the Subject Room in a condition suitable for human habitation. This means that the Subject Room would comply with all ordinances and code regulations existing at the time, including but not limited to 25 California Code of Regulation§ 40.” (Id.)

Civ. Code, § 1621 states: “An implied contract is one, the existence and terms of which are manifested by conduct.” The Court determines that Plaintiffs alleged sufficient facts to show the existence of an implied contract. While Plaintiffs’ constant references to “written” and “oral” remain uncertain and distracting, the Court determines that the uncertainty does not rise to the level where Defendant is unable to respond to the allegations. In addition, Plaintiffs’ stray reference to the breach of the covenant of good faith and fair dealing within this cause of action, when the cause of action is simply for breach of contract, also is not so uncertain that it renders Defendant unable to respond.

Plaintiffs allege the terms of the implied contract, Plaintiffs’ performance, Defendant’s breach, and resulting damages. (SAC, ¶¶ 68-70, 72).

Therefore,
the demurrer to the second cause of action is overruled.

Motion to
Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant,

false, or improper matter inserted in any pleading. CCP § 436(a).

The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. CCP § 436(b). The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. CCP § 436. The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP § 437.

Defendant moves to strike the following allegation:

“Page 18, line 21 (paragraph 5 of Prayer):

“For injunctive relief ordering Defendants to abate their nuisance.”” (Notice of Motion, p. 2, lines 1-2).

The motion to strike is granted without leave to amend. No cause of action for nuisance is alleged in the SAC. Plaintiffs failed to file a written opposition to this motion.

Defendant is ordered to file and serve an Answer within 10 days of this date.

Defendant is ordered to give notice of this ruling.